

11. 9:00 AM CASE NUMBER: C23-01864
CASE NAME: ANNA RUIZ VS. FORMA ALMADEN VALLEY, LLC
HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Summary:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 19, 2026.

Upon review of the declaration filed by Nicole Bench, Class Action Settlement Administrator from ILYM Group, Inc., the Court determines that Plaintiff's Counsel has complied with the Court's order.

Good cause appearing, the Court makes the following order:

1. The Court shall order the release of the 5% retention of attorney's fees in the amount of \$7,087.5 to Plaintiff's Counsel by the Class Action Administrator upon completion of the distribution process and approval of final accounting.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

12. 9:00 AM CASE NUMBER: C24-02485
CASE NAME: ANTHONY BRAKOHIAPA VS. CHEVRON PRODUCTS COMPANY
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO FRANK TALBOTT, V
FILED BY: CHEVRON PRODUCTS COMPANY

TENTATIVE RULING:

Background

Defendant Chevron Products Company ("Defendant") filed a Notice of Motion and Motion for an Order Admitting Frank Talbott, Esq. ("Applicant") to Appear *Pro Hac Vice* ("Motion"). The Motion was brought through Defendant's counsel, McGuire Woods, LLC and supported by the Verified Application of Applicant. The Proof of Service indicates that service was accomplished via U.S. Mail on January 15, 2026. No timely opposition was filed with the Court. This Motion is **granted** as set forth herein. No appearance is required at the hearing on July 15, 2026.

Analysis

California Rules of Court Rule No. 9.40 permits this Court to grant a written application for leave to appear *pro hac vice* to an applicant who is not a member of the State Bar of California, but who is admitted to practice and in good standing with the highest court of another state. The applicant must associate with an active member of the State Bar of California, who shall be responsible for the applicant's conduct in the proceeding. (Cal. Rules of Court, Rule 9.40(a).)

Upon review, the Court finds that Applicant's verified application satisfies the requirements of Rule

9.40. Applicant declares under penalty of perjury that he is an attorney licensed to practice in the State of Virginia and in the Federal Courts of Virginia and Michigan. Applicant is employed by McGuire Woods. Applicant is not a member of the State Bar of California, nor is Applicant a resident of this state, nor does Applicant maintain regular employment or substantial business herein.

Applicant further represents that he/she has not been suspended, disbarred, or resigned from the practice of law in any jurisdiction. No court has Applicant's application for admission *pro hac vice*.

Having considered the moving papers and the applicable law, the Court finds that the Motion satisfies the requirements of California Rule of Court 9.40.

Ruling

1. Defendant's Motion for Admission of Applicant Pro Hac Vice is **granted**. Applicant is admitted to appear *pro hac vice* for the duration of this action, subject to the conditions set forth in California Rule of Court 9.40.
2. The Clerk is directed to file the proposed order lodged with the Court on January 15, 2026, attaching a copy of this ruling. Moving party shall file a copy with the State Bar of California.
3. No appearance is required at the hearing on July 15, 2026.

13. 9:00 AM CASE NUMBER: C25-00110
CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI
HEARING ON DEMURRER TO: RE 2ND AMENDED COMPLAINT
FILED BY: MIZIRAWI, SAMMY
TENTATIVE RULING:

Defendant, Sammy Mizirawi, demurs to the fifth, seventh, and eighth causes of action in plaintiffs' Second Amended Complaint ("SAC"). The demurrer is **sustained**. The motion to strike is **granted**. Defendant shall file and serve his answer on or before July 27, 2026.

Because plaintiffs fail to provide any proposed facts that would change the outcome herein, leave to amend is **denied**. If plaintiffs contest this ruling, they shall come to the hearing prepared to discuss any additional facts that might be added to an amended complaint.

I. Background

Plaintiffs, Marlon Robinson and Sandra Robinson, signed a lease and moved into the subject premises in 2014. (SAC, ¶18.) In December of 2023, plaintiff began experiencing problems that materially affected the habitability of the premises. (*Id.* at ¶19.) In January 2024, plaintiff discovered mushrooms and black mold growing on the walls and carpet inside the premises and behind, and on, his stereo components. (*Id.* at ¶20.) Plaintiff complained to his landlord, defendant Sammy Mizirawi, who came and ineffectively washed the walls with bleach. (*Ibid.*) During this time plaintiff experienced a lot of coughing and was prescribed medications. (*Id.* at ¶21.) Plaintiff purchased a mold test kit to confirm the presence of mold. (*Id.* at ¶22.)

On or about January 26, 2023, while plaintiff Sandra Robinson was sleeping on the couch, the ceiling fell in due to a water leak, causing large amounts of insulation to drop onto her, the couch, the table, and the floor. (SAC, ¶23.) As of August 2024, the leak in the roof was still not repaired, black